

Opinion of the Court

Metropolitan Area Transit Authority, 695 A. 2d 94 (D. C. 1997), for example, the D. C. Court of Appeals held that officers had probable cause to believe the plaintiff knowingly entered the paid area of a subway station without paying. *Id.*, at 96. The court rejected the argument that “the officers had no reason to believe that [the suspect] was ‘knowingly’ in the paid area” because the officers “reasonably could have inferred from [the suspect’s] undisputed conduct that he had the intent required.” *Ibid.* The court emphasized that officers can rely on “the ordinary and reasonable inference that people know what they are doing when they act.” *Ibid.* The court also noted that “it would be an unusual case where the circumstances, while undoubtedly proving an unlawful act, nonetheless demonstrated so clearly that the suspect lacked the required intent that the police would not even have probable cause for an arrest.” *Ibid.* And the fact that a case is unusual, we have held, is “an important indication . . . that [the officer’s] conduct did not violate a ‘clearly established’ right.” *Pauly*, 580 U.S., at 80.

Moreover, existing precedent would have given the officers reason to doubt that they had to accept the partygoers’ assertion of a bona fide belief. The D. C. Court of Appeals has held that officers are not required to take a suspect’s innocent explanation at face value. See, e.g., *Nichols v. Woodward & Lothrop, Inc.*, 322 A. 2d 283, 286 (1974) (holding that an officer was not “obliged to believe the explanation of a suspected shoplifter”). Similar precedent exists in the Federal Courts of Appeals, which have recognized that officers are free to disregard either all innocent explanations,¹⁰

¹⁰See, e.g., *Borgman v. Kedley*, 646 F. 3d 518, 524 (CA8 2011) (“[An officer] need not rely on an explanation given by the suspect”); *Cox v. Hainey*, 391 F. 3d 25, 32, n. 2 (CA1 2004) (“A reasonable police officer is not required to credit a suspect’s story”); *Marx v. Gumbinner*, 905 F. 2d 1503, 1507, n. 6 (CA11 1990) (“[Officers] are not required to forgo arresting [a suspect] based on initially discovered facts showing probable cause simply because [the suspect] offered a different explanation”); *Criss*